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the detraction of his public justice. But this is left to the discretion of good and temperate times. And I desire to observe one difference, which standeth with the rules of law and reason, and which, under favour, I have ever conceived to be just, That upon the speaking of words, although they be against a great person, the defendant may justify them as true; as in all actions *de scandalis magnatum*, which are as properly to be sued in the Star Chamber as in any other court, and he shall be there received to make the truth appear. But if he put the scandal in writing, it is then past any justification, for then the manner is examinable and not the matter. In some cases a libel shall not be examined; as where a libel is made against me, and I hold it more prejudice to me to have it published than if it were concealed; as it was held in *Lamb's Case*, of which I shall take occasion to write a word or two in another place.

§. XII. OF CONSPIRACY AND FALSE ACCUSATION.

I WILL conclude the particular offences which I shall speak of with this great offence of *conspiracy*, rarely heard of in former times, but in our age grown frequent and familiar. And herein some questions have arisen; as in the Case betwixt *Rocheſter* and *Solm* it was questioned, Whether if the party is *legitimo modo acquietatus*, he may sue in this court for conspiracy? for *sir Edward Coke* would have maintained, that after his acquittal he was to prefer his indictment at the common law, where conspirators were to have their villanies judged. But the *lord Egerton* did gravely confute that opinion, and open the jurisdiction of this court, manifesting that notwithstanding the party might have his indictment, yet that excludeth not the court of jurisdiction; for in all cases of force or fraud an indictment lieth at the common law; yet this court will proceed for the king also. But afterwards, the evidence

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being read, the case appeared to be, that *Rochester* struck *Solm's* father on the head, and broke his head. Being a sickly old man, old *Solm* about a month after fell sick and died, and on his death-bed complained of his hurt. *Solm* his son and others his friends indicted *Rochester* for the murder; who, upon his arraignment, being acquitted, preferred his bill for conspiracy: and upon the whole matter the court thought not fit to proceed; for the son had just cause and ground to prosecute *Rochester* upon the indictment, there being a blow, and a death shortly ensuing; and the death of the father, who complained of the blow; and therefore it is no ground to say the jury acquitted him, and therefore your indictment was false; for many times great offenders escape upon indictments, and yet perhaps the prosecution is not without malice (for the truth may be accompanied with malice); and then I know not but every acquitted delinquent may bring his writ of conspiracy; which I the rather touch, because I heard this error publicly broached by a learned man.

BUT when the party is indicted, and not *legitimo modo acquietatus*, then can no conspiracy lie, as it was adjudged in *Daniel Wright's Case*. And therefore in the Case of *Baker* against *Hall* and *alderman Lumley and Others*, for prosecuting an indictment against him upon the statute of 3. H. 7. for taking away a woman against her will and marrying her, which indictment he avoided by error, and upon hearing it was adjudged that he could not prosecute a conspiracy. Otherwise it is if the party be never indicted, and that either the malice of the adversary cannot prevail to have the indictment found, as it was in *Poulter's Case*; or the plot be discovered before it come so far, as it was in the Case of *sir Anthony Aspley* *. In both these cases conspiracy will lie in this court; and yet no action or indictment will lie at the common law, unless the party be indicted, yea and acquitted also.

* Coke I. 5. & 8.

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THUS then out of these judgments it appears, that this court hath jurisdiction in all cases of *conspiracy* where the common law hath any, and in divers cases further than the common law. And to manifest that this is no usurpation of this court in latter times, I find that in 7. H. 8. one *Palin* and *Blackenball* are there sentenced, for that they did "maliciously and without cause reasonable" (for these are the words of the sentence) accuse one *Cuthbert Laugh-ton* for clipping of money; and in 18. H. 8. one *Constance* the wife of *John Young* was questioned for false accusing of *Thomas Young*, his brother, to have made away and murdered her husband, whom she knew to be alive, as appeareth by her own confession before the cardinal; in both which there appears no indictment or acquittal once mentioned to be precedent to the same,

I MUST also observe, that by the common law no indictment of conspiracy can lie but against two at the least; but in this court, if one man falsely accuse another, he shall be here punished, as in conspiracy. And so was *Lee* not long since sentenced and branded for practising subtilly to accuse divers men of great worth to have been guilty of the Powder treason; and so was *Pye* for malicious seeking to indict *mr. Meyrick* of the Temple for felony; in both which cases both the defendants stood on the pillory, and lost their ears, and the one was branded with F. A. in the face.

It appears by *Fitzherbert* in *Nat. Bre.* in his Writ of Conspiracy, that if a man be falsely indicted for felony, and the same felony be pardoned by a general pardon, although to manifest his innocence he will plead to the indictment, and he be acquitted, and will take no advantage in pleading of the pardon, yet at the common law he can have no action of conspiracy; and the reason there given is, for that his life was not in jeopardy. But there is no question but this court will for the king punish this offence, and hath jurisdiction sufficient, which is proved by the

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Cases before alledged; for before the indictment life could not possibly be in hazard, and yet the offenders were punished. And this complaint of conspiracy doth not only lie in the case where a man is prosecuted for felony, treason, or rape, but where he is indicted falsely and maliciously for any trespass. But especially there be many examples where many have been maliciously indicted for common barratry, because that tendeth to the utter ruin of a man's reputation, which is as carefully preserved in this court as life itself. *Fitzherbert* puts a case where conspiracy lieth, for that a man was falsely presented in the leet for suffering a felon to escape; which, without question, is punishable in this court.

§. XIII. OF CAUSES HERE EXAMINABLE, NOT OTHERWISE PUNISHABLE.

LEAVING now the particulars, I come to express the great and high jurisdiction of this court, which, by the arm of sovereignty, punisheth errors creeping into the Commonwealth, which otherwise might prove dangerous and infectious diseases, or giveth life to the execution of laws, or the performance of such things as are necessary in the Commonwealth, yea although no positive law or continued custom of common law giveth warrant to it. Such are all punishments of breach of proclamations before they have the strength of an act of parliament, which this court hath stretched as far as ever any act of parliament did. As 41. *Eliz.* builders of houses in London were sentenced, and their houses ordered to be pulled down, and the materials to be distributed to the benefit of the parish where the building was; which disposition of the goods soundeth as a great extremity, and beyond the warrant of our laws; and yet surely very necessary, if any thing would

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would deter men from that horrible mischief of encreasing that head which is swoln to a great hugeness already.

If a corporation shall be rent asunder by faction, and that they shall by a wilful and heady practice displace any which ought to be their officers, this court will restore him and punish them; as they did in 17. *H. 8.* to the company of dyers of London. If one troublesome man disquiet the rest of a corporation, this court will punish him: so they did *Dunning*, one of the pewterers, *M. 3. Jac.*

ATTEMPTS to coin money, to commit burglary, or poison or murder, are in ordinary example; of which the attempt by *Frizier* against *Baptista Basiman*, in 5. *Eliz.* is famous; and that attempt of the two brothers who were whipped and gazed in Fleet-street in 44. *Eliz.* is yet fresh in memory.

NAY, if a man practise to have himself indicted of felony where he may have clergy, to the end to be delivered out of execution, this is punishable; and in 31. *H. 6.* his arraignment was stayed until the king and his council's pleasure were known.

If a young man shall be drawn to the company of a lewd woman, and one as her husband shall enter the room and take him with her, and by this plot shall wrest from him money, land, or leases, this is punishable, as *mr. Lambert* thinketh; or if men shall draw a young man into a continued drunkenness, and in that drunkenness shall draw from him the estate of all his lands, this is punishable, as in the late Case of *Lerckwith*. If a man be outlawed and have his pardon, and yet will cause his goods to be seized as for the king, and thrust them into the hands of a person trusted by him, there to be protected against his just debts; this abuse of the king's prerogative is punishable. A woman practised to have her husband whipped, but the same was not performed; and after her husband's death she married again: his father sued her for this practice; and although the action died with the person at the com-

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